

Pursuant to C.C.P., section 581(f)(2): “The court may dismiss the complaint as to that defendant when ... after a demurrer to the complaint is sustained with leave to amend, the plaintiff fails to amend it within the time allowed by the court and either party moves for dismissal.” In any event, dismissal is discretionary and may well be denied where plaintiff furnishes a sufficient excuse for delay in amending. (*Contreras v. Blue Cross of Calif.* (1988) 199 CA3d 945, 948.)

The rule is different where an amended pleading is filed beyond the date permitted by the court (and before a motion to dismiss is made). In such cases, the untimely amendment is subject to a motion to strike upon formal notice and hearing. No dismissal motion will lie until the amended pleading is stricken. (CRC rule 3.1320(i); *Gitmed v. General Motors Corp.* (1994) 26 CA4th 824, 827.)

Here, the procedural posture of this case does not fit exactly within C.C.P., § 581(f)(2) as no demurrer was actually filed and/or ruled on. Rather, the parties stipulated that Plaintiffs may file a SAC in lieu of a demurrer. The stipulation and order provided at paragraph 3 “Plaintiffs shall file and serve the Second Amended Complaint within thirty (30) days of the date the Court signs and enters this Order. If Plaintiffs fail to timely file and serve the Second Amended Complaint within this deadline, Defendants shall retain all rights and remedies available to them under the California Code of Civil Procedure, including but not limited to the right to file a demurrer or other responsive pleading to the First Amended Complaint.” It is undisputed that Plaintiffs did not timely file a SAC, but have since done so. They have also provided a sufficient excuse for the delay in amendment (i.e. Plaintiffs counsel’s illness).

3.

CASE #	CASE NAME	HEARING NAME
CVME2509541	PRUITT VS THE LAKES COMMUNITY ASSOCIATION	DEMURRER ON 1 ST AMENDED COMPLAINT

Tentative Ruling: Special Demurrer Overruled for Uncertainty. Demurrer to the Second cause of action for Negligence is overruled. Demurrer to the First(Defamation), Third(IIED), Fourth(NIED), and Fifth(Davis-Stirling) causes of action are sustained with 20 days leave to amend. Trial Setting Conference is continued to November 3, 2026, 8:30 am M301 as the pleadings are not set.

On 5/8/2026, Joseph Pruitt, in pro per, filed the operative first amended complaint (“FAC”) against The Lakes Community Association. The complaint asserts the following causes of action: (1) defamation; (2) negligence; (3) intentional infliction of emotional distress (“IIED”); (4) negligent infliction of emotional distress (“NIED”); (5) violation of the Davis-Stirling Common Interest Development Act. The FAC states that on 6/20/2025, Defendant issued a written notice that Plaintiff’s minor son violated the HOA rules. (FAC, ¶ 6.) Plaintiff takes issue with the veracity of the notice and the lack of investigation prior to a hearing where video evidence showed the offender was not Plaintiff’s son. (*Id.* at ¶¶ 16-19.) The FAC states Plaintiff and his son suffered reputational harm, emotional distress, and humiliation. (*Id.* at ¶ 22.)

Now, Defendant demurs to the entire FAC, arguing each cause of action fails to state facts sufficient and that the third, fourth, and fifth causes of action are uncertain. Defendant also argues Plaintiff lacks standing to sue on behalf of his son.

In opposition, Plaintiff argues each cause of action is properly stated and that the facts impacted Plaintiff as a parent, providing standing. Plaintiff seeks leave to amend in the alternative.

Demurrer – A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (CCP § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts which have been properly pleaded, of facts which may be inferred from those expressly pleaded, and of any material facts of which judicial notice has been requested and may be taken. (*Crowley v. Katleman* (1994) 8 Cal.4th 666, 672.) However, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.) Facts appearing in exhibits attached to the complaint will also be accepted as true and, if contrary allegations appear in the complaint, will be given precedence. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 606.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

Uncertainty - While Defendant specially demurs to the third, fourth, and fifth causes of action in the FAC on the ground of uncertainty under CCP § 430.10(f), Defendant fails to explain how any of the claims are uncertain such that they cannot reasonably determine what issues must be admitted or denied, or what claims are directed against them. (*Khoury, supra*, 14 Cal.App.4th 612, 616.) These causes of action are not so unintelligible that Defendant cannot respond. Accordingly, the demurrer is on grounds of uncertainty.

First Cause of Action – Defamation - Defamation requires “the intentional publication of a false statement of fact that has a natural tendency to injure the plaintiff’s reputation or that causes special damage.” (*Kinda v. Carpenter* (2016) 247 Cal. App. 4th 1268, 1280; *Smith v. Maldonado* (1999) 72 Cal.App.4th 637, 645; Civ. Code § 44.) “Libel is a false and unprivileged publication by writing, printing...which exposes any person to hatred, contempt, ridicule...or which has a tendency to injure him in his occupation.” (Civ. Code § 45; see also *Wong v. Jing* (2010) 189 Cal.App.4th 1354, 1369.) Libel is “per se” if the statement is defamatory on its face and nothing needs to be added to make its defamatory meaning understood. (Civ. Code § 45a; *Barnes-Hind, Inc. v. Sup. Ct. (Allergan Pharmaceuticals, Inc.)* (1986) 181 Cal.App.3d 377, 381, 384-385.) In an action for defamation per se, the meaning is so clear from the face of the statement that the damages can be presumed. (*Tilkey v. Allstate Insurance Company* (2020) 56 Cal.App.5th 521, 541.)

The elements of a defamation claim are: (1) a publication that is (2) false, (3) defamatory, (4) unprivileged, and (5) has a natural tendency to injure or that causes special damage. (*Taus v. Loftus* (2007) 40 Cal.4th 683, 720.)

“Publication means communication to some third person who understands the defamatory meaning of the statement and its application to the person to whom reference is made. Importantly, defamation must be pleaded with particularity; each allegedly defamatory statement must be specifically identified if not set forth verbatim in the complaint. (*Vogel v. Felice* (2005) 127 Cal.App.4th 1006, 1017, fn. 3; *Dowling v. Zimmerman* (2001) 85 Cal.App.4th 1400, 1421; see also *Martin v. Inland Empire Utilities Agency* (2011) 198 Cal.App.4th 611, 631 [“Plaintiff failed to plead the defamation claim with sufficient specificity that anyone could discern whether the allegedly defamatory statements concerned defendants’ protected speech”].)

Here, the FAC fails to adequately identify the defamatory statements with particularity. (FAC, ¶¶ 6-7.) It also fails to allege that the statements were unprivileged and have a natural tendency to injure or cause special damages. Regarding standing, the FAC is also insufficient in alleging with particularity how the alleged defamatory statements implicated Plaintiff rather than just his son. Because of the failure to adequately identify the defamatory statements and their context, it is unclear whether Defendant’s argument regarding the common interest privilege has merit.

Second Cause of Action – Negligence - The elements of a cause of action for negligence are: (1) a legal duty to use due care; (2) breach of such duty; (3) the breach was the proximate or legal cause of resulting injuries. (*Ladd v. County of San Mateo* (1996) 12 Cal.4th 913, 917.) “Negligence may be alleged in general terms; that is, it is sufficient to allege an act was negligently done without stating the particular omission which rendered it negligent. There is no requirement that [the plaintiff] identify and allege the precise moment of the injury, or the exact nature of the wrongful act.” (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747-748.) The threshold element of a cause of action for negligence is the existence of a duty to use due care toward an interest of another that enjoys legal protection against unintentional invasion.” (*Bily v. Arthur Young & Co.* (1992) 3 Cal.4th 370, 397.) Whether there is a duty is a question of law. (*Id.*)

The FAC states alleges Defendant owed a duty to act with reasonable care in investigating and publishing allegations. (FAC, ¶ 31.) The FAC alleges that at the hearing, video evidence clearly showed Plaintiff’s son was not at fault. (*Id.* at ¶ 18.) The FAC states Defendant breached this duty by failing to verify the allegations prior to issuing the notice. (*Id.* at ¶ 32.) As negligence does not require specific pleading, these allegations are sufficient for pleading purposes. Defendant’s argument regarding contradictory claims is without merit because the mere fact that a hearing was held after publication does not contradict the allegations of negligence in failing to investigate prior to issuing the notice. Defendant’s argument regarding this being a repackaged defamation claim is without merit at the pleadings stage.

Third and Fourth Causes of Action – IIED and NIED - To recover for IIED, the conduct at issue must be outrageous. (*Cervantez v. J.C. Penney Co.* (1979) 24 Cal.3d 579, 593.) Defendant also must have intended to cause or acted with reckless disregard of the possibility of causing severe or extreme emotional distress, and plaintiff must have suffered this distress. There must also be a causal nexus. (*Fletcher v. Western National Life Ins.* (1970) 10 Cal.App.3d 376, 394.) Outrageous conduct is conduct that is so extreme as to exceed all bounds of that usually tolerated in a civilized community.

(*Ross v. Creel Printing & Publishing Co. Inc.* (2002) 100 Cal.App.4th 736, 745.) “Behavior may be considered outrageous if a defendant (1) abuses a relation or position which gives him power to damage the plaintiff’s interest; (2) knows the plaintiff is susceptible to injury through mental distress; or (3) acts intentionally or unreasonably with the recognition that the acts are likely to result in illness through mental distress.” (*Hernandez v. General Adjustment Bureau* (1988) 199 Cal.App.3d 999, 1007.) This cause of action must be pleaded with specificity. (*Schlauch v. Hartford Accident Ins.* (1983) 146 Cal.App.3d 926, 936.)

As currently pled, the FAC lacks sufficient allegations to support an IIED claim due to the lack of outrageous conduct. Regarding emotional distress damages for the IIED claim, the FAC lacks allegations demonstrating “the nature, extent or duration of [plaintiff’s] alleged emotional distress.” (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.)

“Negligent infliction of emotional distress is not an independent tort; it is the tort of negligence to which the traditional elements of duty, breach of duty, causation, and damages apply.” (*Ess v. Eskaton Properties* (2002) 97 Cal.App.4th 120, 126.) Recovery for negligent infliction of emotional distress is typically permitted in two situations - referred to as “bystander” and “direct victim” claims. (*Id.* at 126-127.) “Recovery may be permitted in bystander case where the plaintiff is closely related to the victim of a physical injury, is present at the scene of the injury causing event and is then aware that it is causing injury, and suffers emotional distress beyond that which would be anticipated in a disinterested witness.” (*Id.* at 127.) To recover under a claim of negligent infliction of emotional distress where there is no personal physical injury, the plaintiff must suffer from serious emotional distress. (*Wong v. Jing* (2010) 189 Cal.App.4th 1354, 1377-1378.) A preexisting relationship is where a defendant has assumed a duty of care beyond that owed to the public in general. (*Christensen v. Superior Court* (1991) 54 Cal.3d 868, 884.) Here, the FAC fails to allege such serious emotional distress to support the NIED claim.

Fifth Cause of Action – Davis-Stirling Common Interest Development Act -

Pursuant to the Davis-Stirling Common Interest Development Act (Davis-Stirling Act) recorded CC&Rs are enforceable equitable servitudes, which are binding on all owners of separate interests in the development. (*Nahrstedt v. Lakeside Village Condominium Association* (1994) 8 Cal. 4th 361, 378.) CC&Rs are interpreted according to the usual rules for the interpretation of contracts generally to give effect to the mutual intent of the parties. (*Id.* at 380–381.)

Statutory claims must be pled with specificity. (*Covenant Care, Inc. v. Superior Court* (2004) 32 Cal.4th 771, 790.) The allegations in the FAC regarding this cause of action are far too general and conclusory to support a statutory claim. The general reference to “Civil Code §§ 5850-5855 and related provisions” is insufficient. (FAC, ¶ 47.)

Additionally, the Davis-Stirling Act requires that at the time an enforcement action is commenced, the party filing the action “shall file with the initial pleading a certificate stating that one or more of the following conditions are satisfied: (1) Alternative dispute resolution has been completed in compliance with this article; (2) One of the other parties to the dispute did not accept the terms offered for alternative dispute resolution;

(3) preliminary or temporary injunctive relief is necessary.” (*Id.* § 5950(a).) “Failure to file a certificate pursuant to subdivision (a) is grounds for a demurrer or a motion to strike unless the court finds that dismissal of the action for failure to comply with this article would result in substantial prejudice to one of the parties.” (*Id.* § 5950(b).)

4.

CASE #	CASE NAME	HEARING NAME
CVME2600067	BASS VS CLENNAN	HEARING ON PRELIMINARY INJUNCTION

Tentative Ruling: Preliminary Injunction denied. Accompanying ex-parte relief is denied.

This is an action to stop an allegedly wrongful foreclosure and other causes of action brought by plaintiff Quinn Bass, the owner of the subject property located on Paul Road in Aguanga, against Mortgage Solutions of Colorado and its President/CEO, Rob Clennan. Plaintiff had previously brought a motion for a preliminary injunction, which the court had denied on March 6, 2026.

Plaintiff has since amended his complaint. The background facts are still the same: On November 18, 2024, plaintiff entered into an agreement with Mortgage Solutions to borrow \$350,000.00 (First Amended Complaint, ¶11), with the note to be secured by a deed of trust on the subject property. In exhibits to the original complaint, of which the court can take judicial notice, It shows that plaintiff signed the documents as: “By: bass, quinn—W.O.P.” (Original Complaint, Exhibit “A”). On November 20, 2024, Mortgage Solutions sent to plaintiff a letter stating: “our company requires all loan documents to be signed in a borrower’s legal name, without any qualifications such as ‘without prejudice’ or ‘WOP’. Qualifications such as this are historically used to denote a condition or limited offer and, or to pursue claims that a document is not enforceable against the signer. The legal nature of the mortgage documents require your unequivocal agreement to the terms as outlined in the documents. If a borrower insists on using such qualifications, it may indicate they do not intend to pay their mortgage, or intend to not have the mortgage, note, or deed of trust enforceable against them. Therefore, use of these qualifications may mean borrowers are requesting funds for their loan under false pretense and/or to pursue fraud. As a result of compliance with anti-mortgage fraud laws, and general aversion to high-risk transactions such as these, our company will not proceed to fund or otherwise advance a loan where a borrower insists on signing his or her name with these types of qualifications.” (Original Complaint, Exhibit “C”). On November 20, 2024, plaintiff signed the documents as Quinn Bass, writing at the top of the deed of trust “(Second Note) (Signed Under Economic) Duress”. (Original Complaint, Exhibit “C”).

On December 16, 2024, plaintiff sent defendants a notice of rescission, purportedly rescinding the loan and security interest. (Original Complaint, Exhibit “B”). He also in December of 2024 executed a quitclaim deed transferring his interest to the Q Ali Bey Express Trust. (*Id.*) Various other documents followed, such as UCC Financing Statements and complaints about being reported to credit reporting agencies for not paying the note, but on May 30, 2025, defendant Affinia Default Services, LLC filed a notice of default and election to sell under deed of trust (Original Complaint, Exhibit “K”),